

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.255	0.162	0.009	0.256	0.250
Trial Fee-Shifting	0.253	0.159	0.016	0.256	0.245

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.239	0.163	0.004	0.258	0.218
Trial Fee-Shifting	0.274	0.116	0.004	0.262	0.187